

Yesterday we discussed about language, and about how being in the net, has profound consequences for the way we think and express ourselves.

The space in which we express ourselves have changed and have imposed rules upon us inherent in their functioning. These rules are difficult to identify, but they possess an effective normativity: the process are able to influence our behaviours. Communication among human beings does not occur solely through words, explicit expression of contents. In the real world, communication may occur through a total absence of words, the "silence". It's a form of communication among human beings which assumed a defective form. Let's try to understand silence more deeply, especially in relation with being in the net. Silence is a phenomenon bounded to sacred.

The age of networks, the age of compulsion to communicate, may be defined as desacrilised age. Communicative noise occupies every space of expression, transforming it in a performative opinion. Through gossip, the network is flooded with voices either human or artificial, that not only deform communication rather than inform, but saturate every possibility of true listening.

Informational capitalism does not love silence. By remaining silent, we gain the possibility of listening, not only others, but ourselves, and our conscience.

Silence therefore calls us to withdraw and remove ourselves, yield into a certain state of transcendence. Withdraw is "ritrarsi", and the act of withdrawing is "ritratto", making a project of ourselves. In order to make a project of ourselves, we need to take a distance from our image, transcending in order to represent us. A portrait requires a long time in order to be produced, it does not have the speed achieved through a selfie.

in a time where being there is equivalent to display ourselves online, we're no longer capable of accessing silence, which imposes anguish, instead we're driven to hyper communication, aimed at the self production of our identity.

Only silence can set imagination in motion. Silence understood as a space open to mystery allows imagination to occupy that space, without colonising it.

Outside of fantasy, there is only place for pornography. The constant removal of distance and the world cannot be understood as "drawing near", rather as a de-distancing ("disallontamento").

Networks tends to eliminate distance and render everything available and ready to use, without the need to act, but merely through the touch of a finger through the screen.

Yet, this way of abolishing distance does not imply the effort of approaching something. The aim is not to deepen relationships, but to eliminate all limits that

prevent me from enjoying what I want and desire.

Being in the network prevents us from entering a state of contemplation and silence. Eyes are compelled to watch and capture as much novelty as possible to remain updated. Online we can never cease to expose ourselves, under the threat of disappearing, and so not being there.

In this sense, we must distinguish two forms of freedom: positive freedom, consisting in the power of doing something, which is the power of doing nothing. This is not opposed to doing something, rather is an autonomous power. Not acting necessarily renders us capable of lingering in silence, contemplation. Where negative freedom is lacking, we fall into a distractive hyper activity.

Having also considered the defective aspect of language (silence), we must now consider its graphic aspect, the writing. The digital revolution may also be seen as a graphic revolution, connected to the appearance of a new form of writing. Traditional alphabetic writing, that we read and write for recording words, have entered in our every day life, passing unnoticed.

The history of alphabetic writing is ancient, arisen from a combination never stabilised in western history, among numbers, letters, figure and matter. In 53 centuries of existence, writing has known multiple combinations among entities. The greek did not invent the alphabetic writing, but they received it from Phoenicians. They used a consonantal alphabet, that is an alphabet recording only consonants. The greek received it and transformed it into a vocalic consonantal alphabet.

For example, "th ct s bg" (Phoenicians alphabet) could have different meanings, like "the cat is big". Greek alphabet added vowels. It no longer requires comprehension of words, nor must one already know a language to decipher it (as was the case with Phoenicians). With the greek alphabet, we can read everything without understanding it.

The Greek system marks a turning point reflecting our situation today.

Having made this premise, we may now consider the new form of writing inaugurated by computer science. This new graphic regime differs from all previous forms of writing into fundamental characteristics. Its conceptual characters, founded upon a clear separation between hardware and meaning. In the other hand, its combinatory character, allowing it to perform a specific activity, not requiring human participation to exist. Sequences of numbers could be rewritten into another sequence of numbers.

Unlike the alphabetic writing, computational writing does not consist in the mere recording of words, but manifest as an order proper to itself. The computational treatment of writing does not register a reality pre-existing in itself (as words), but

aims at transforming through combinatory activity.

We might say that the digital is not merely a new writing rendering the diffusion and circulation of messages, but it's also a symbolic revolution.

Computational writing comes to compete with, without replacing writing upon text.

By dethroning the monopoly of text, graphic revolution changes our reality.

Laws, as well, are enacted and transmitted in form of text. The digital acts as symbolic organizers in all sectors of life. Its impact upon law is revealing of the new challenges of this revolution.

Phenomena, once converted into science, may be converted in numerical signals. The passage will therefore be reality, and then numerical codes.

The first observation may be that digital codification renders completely homogenous phenomena that are widely different. It could be that image of a child can be a text of our constitution, a song, a blood test (???)

Any phenomena can be transcribed through digital coding.

Transcription into a single language is achieved by rejecting everything that might refer to senses. This arithmetic homogeneity that constitute the novelty of this revolution, having human intervention no longer required to process such data, everything is inside the processor.

Digital writing separates these two moments (??)

Whilst in traditional writing, meaning means aligning letters into words, digital writing makes this operation impossible for the reader. Computational processing takes place at such high speed, so that no one can actually follow the procedure step by step.

Computation processing also takes place on zeroes and ones, and the oceanic sequence of zeros and ones rewriting reality into such sequence, renouncing to immediate legibility, turn the reading of programming language an impossible task.

If programmers become the custodian of this form of writing, the non programmer users must delegate this activity to computer science, losing control over these activities.

We must observe the rise of a new class of private legislators, that are software engineers and programmer. They're named like that as they formulate the new laws of our words, incorporating them into the laws of technology.

They represent the opaque power, no longer because they're unknown individuals, but also because they make laws based on illegible language.

The notion of digital writing is not limited to transformation of the physical reality into data, as the age of network has provided a third stage: the statistical

aggregation of data (big data), made possible through the interconnection of devices.

This statistical aggregations aim to establish new correlations.

Establishing correlations through data leads to believe words speak for themselves.

Yet, the statistical understanding of natural phenomena is something "che varia".

Today, thanks to computational automation, such understanding allows to know the general tendency of opinions, but also shaping them.

The fact that digital writing does not have the possibility of being read renders a new form of writing, one that must be translated into language.

With respect to writing, any activity requiring a computational mediation immediately becomes opaque to users. No one knows what is going on within computers when they process information, as no one has access to language of binary sequences.

There exists a very concrete risk in the rewriting of reality, which is the one of desymbolisation. The evocative power of words consists in conferring upon science a symbolic values binding individuals together, and making them part of a greater order, both in space and time. They belong to it not only as they use a language, but also because they have to interpret it.

Language, through the use of words, not only tends to recall a determinate meaning, but at the same time opens that meaning to diverse interpretation.

In one side, it defines (putting a gate around something, closing), but at the other side it opens to meaning of different interpretation, as language is something plastic.

The expressivity of ? consists in the evocative power that signs (??) are capable of simulating in those who perceive it.

In a computation language, numerical sequence are uninterpretable and distant, as they're emptied of any expressive force.

We've seen that computational writing depresses characters of their symbolical form. This graphic activity, delegated to computers, takes place neither in a bodily lived space, nor in a collectively constructed time.

The functionality of digital writing derives from the claims it has finally freed itself from the combination of word and rite.

Word and rite constitute the symbolic nucleus of law, and there is a profound correlation between words and norm, so between "nomos" and "logos".

Norms are expressed in linguistic formulations, that, in order to have a meaning, must respect rules (linguistic, grammatical). When we create laws we use words that may be open to other meanings. When we interpret words, we can reshape the way we look at them.

Whilst "family" is just a word and has a specific meaning nowadays, in another context it may mean something different.

Within law, words may be used both having an expressive power, that is when someone uses words in a trial to deliberate, or they can have a performative power, that is in taking an oath (for example) or pronouncing a sentence. So, something that has practical consequence. A "yes" in a marriage has a performative power.

In such cases, speech draws its force not only from what is said, but also from the fact that such enunciation is formulated within a juridical framework.

The most solemn acts require real presence, to swear an oath or to marry implies that words must be spoken clearly, usually standing in a specific place, before an authority and public witnesses.

Rights declared or conferred cannot be expressed only through a formal enunciation, relying to a chain of meanings, conjoining words with rite.

There is an integration between the content of the written text, and the ritual... Language itself is nothing without its ritual apparatus. It would only be a text deprived of its context.

The ritual content, despite transformations, has never lost its force.

Today, jurists are called upon to consider the ritual component as something folkloric, a waste of time and resources. We must thus distinguish the ritual repetition from computational iteration. The latter aims at endlessly identical repetition of procedures (stereotypes).

Ritual generates meanings through the mediations of symbols, allowing the collective management of violence and vengeance.

Juridical rituals, through this immobility (apparent), makes it possible to integrate horrors, sublimate violences, and overcome conflicts.

The role of a ritual is to introduce a void of meanings, in view of reconstruction through collective instruments.

It's thanks to this alchemy that ritual may obtain a certain symbolic efficacy, manifested through the solution of conflicts.

We might say that, digital techniques, by modifying the conditions through which meaning are elaborated, simultaneously ??

On one hand, digital revolution tries to redefine laws, and on the other ??